

Rohit S/O Subhash Tantrapale And ... vs State Of Mah. Thr. Pso M.I.D.C., Nagpur on 24 November, 2022

Author: M. W. Chandwani

Bench: S.B. Shukre, M. W. Chandwani

apl1277.2021.od

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR.

CRIMINAL APPLICATION (APL) NO.1277/2021

Rohit S/o Subhash Tantrapale and another

-Vs.-

State of Maharashtra, through PSO M.I.D.C., Nagpur

Office notes, Office Memoranda of
Coram, appearances, Court's orders
or directions and Registrar's orders.

Court's or Judge's Orders.

Mr. AM. Jaltare, Advocate for the applicants.
Mr. S.S. Doifode, A.P.P. for non-applicant No.1.
Mr. B.G. Kulkarni, Advocate for non-applicant No.2.

CORAM : SUNIL B. SHUKRE AND
M. W. CHANDWANI, JJ.

DATE : 24.11.2022 Heard learned counsel for the applicants and Mr. Doifode, learned A.P.P. for the State.

2. Leave to amend the application is granted by adding additional prayer regarding quashing of the chargesheet. Amendment be carried out forthwith.

3. The affidavit dated 23.11.2022 is taken on record. It is marked "A" for identification. The affidavit is accompanied by a petition for divorce under Section 13(b) of the Hindu Marriage Act, 1955 seeking divorce for mutual consent before Family Court, Nagpur.

4. The facts of the case reveal that the applicant No.2, apl1277.2021.odt the wife of applicant No.1, had on 15.7.2021 lodged a report against the applicant No.1 alleging commission of repeated acts of rape and attempt of sodomy by applicant No.1 on applicant No.2 under influence of liquor. M.I.D.C. police accordingly registered offence under Sections 376, 377 and 323 of the Indian Penal Code

against applicant No.1. Meanwhile, husband and wife i.e. both applicants have realized that it was a mistake on their part to stay together and they decided to part their ways by filing a petition for mutual divorce and that petition is pending. One of the pleadings of the petition is that both these applicants would work together for quashing of the crime registered against applicant No.1 at the behest of applicant No.2 with M.I.D.C. police. These facts clearly show that the dispute which has arisen between applicant No.2 and applicant No.1 have roots in their matrimonial differences and dispute and, therefore, even though the offences registered against applicant No.1 which are punishable under Sections 376, 377 and 323 of the Indian Penal Code, are quite serious offences, these offences could be said to be having their roots in the civil dispute and, therefore, could be treated as purely of private nature. If this is so, this case would be squarely covered by the various judgments of the Apex Court including the cases of Narinder Singh V/s. State of Punjab reported in (2104) 6 SCC 466 and Parbatbhai Aahir alias Parbatbhai Bhimsinhbhai Karmur and others apl1277.2021.odt V/s. State of Gujarat and another reported in (2017) 9 SCC

641. We are thus of the considered view that this is a fit case where interference is necessary or otherwise there would be a possibility of miscarriage of justice.

5. Both the applicants are personally present before this Court and they have been identified by their respective learned counsel. Both of them unanimously maintain that they have arrived at an out of court settlement for quashing of the crime registered against applicant No.1 as that would help them in seeking mutual divorce before the Family Court and that their dispute is of civil nature.

6. The application is allowed and the Crime bearing No.404/2021 registered with the Police Station M.I.D.C., Nagpur and Sessions Trial No.321/2022 are hereby quashed and set aside.

7. Considering the poor financial status of the applicants no costs are imposed upon them.

8. Both the applicants shall appear before the Family Court on 28.11.2022 at 11 a.m. to facilitate the conduct of proceedings in Hindu Marriage Petition bearing No.F-694/2022.

(M.W. CHANDWANI, J.) (SUNIL B. SHUKRE J.) Signed By:NILESH VILASRAO TAMBASKAR
Private Secretary Tambaskar.

Date:24.11.2022 17:27